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Gov. Newsom Signs Historic Tax on Gun Manufacturers

September 28, 2023 | San Fernando Valley Sun, The (CA)
Author: SFVS Staff | Section: News | 673 Words
OpenURL Link

Gov. Gavin Newsom signed into law the Gun Violence Prevention and School Safety Act Sept. 26, a landmark measure that would tax the gun industry to create a permanent funding source for school safety and gun violence prevention programs in California.

Authored by Assemblymember Jesse Gabriel (D – Encino), Assembly Bill (AB) 28 will impose an 11 percent excise tax on the sale of guns and ammunition by gun manufacturers and dealers and is expected to generate $160 million annually to fund school safety and violence prevention programs, including initiatives to prevent mass shootings, bolster firearm investigations and remove guns from domestic abusers.

"AB 28 is based on a straightforward premise — that we should prioritize the safety of our kids over gun industry profits," said Assemblymember Jesse Gabriel, author of AB 28 and chair of the Legislature's Gun Violence Working Group. "It's shameful that gun manufacturers are reaping record profits at the same time that gun violence has become the leading cause of death for kids in the United States. AB 28 will generate $160 million annually to fund critical violence prevention and school safety programs that will save lives and protect communities across the state of California. I am deeply grateful to Gov. Newsom for signing AB 28 and for his outstanding national leadership in addressing gun violence."

AB 28 was strongly supported by all of the major gun safety organizations, including Giffords, Moms Demand Action, Everytown, Brady and March for Our Lives.

"Thank you to Gov. Gavin Newsom, Assemblymember Jesse Gabriel and thousands of community leaders across California for putting the safety of the people above the gun industry's profits," said former Congresswoman Gabby Giffords. "This example of bold and effective leadership will fund the courageous and lifesaving efforts of violence intervention workers, enhance the health and safety of California's children and bolster the enforcement of California's gun laws by keeping guns out of the hands of prohibited people, including domestic abusers."

AB 28 establishes the Gun Violence Prevention and School Safety Fund, enabling California to make long-term investments in a variety of initiatives designed to prevent gun violence, enhance school safety, support critical firearm relinquishment, improve implementation and coordination of gun violence prevention activities, solve more murders and shootings and promote justice and equal access to safety for all Californians.

AB 28 is not intended to penalize firearm sellers or otherwise discourage lawful firearm sales and commerce but instead will generate revenue to sustain programs that are targeted at mitigating the harm that firearms and related products cause.

Since AB 28 was introduced at the beginning of the current legislative session, the United States has experienced hundreds of mass shootings, including horrific incidents in Monterey Park and Half Moon Bay. AB 28 will go into effect starting July 1, 2024.

Background on AB 28

This legislation will generate approximately $160 million annually, which would be allocated principally as follows:

— $75 million for the California Violence Intervention and Prevention (CalVIP) program;

— $50 million for school safety initiatives, including before and after-school programs eligible to receive funding

under the Bipartisan Safer Communities Act;

— $15 million for a court-based firearms relinquishment program to safely remove guns from domestic abusers and convicted criminals, as well as others who are subject to civil or criminal restraining orders; and

— $15 million to help law enforcement improve firearm investigations in communities disproportionately impacted by gun violence.

Since 2020, children in the United States are more likely to die from guns than any other cause of death. A recent report by the American Academy of Pediatrics found that the firearm death rate for American children increased by 40 percent between 2018 and 2021.

In addition, gun violence also causes enormous economic harm, including fiscal burdens on state and local governments, along with taxpayers. A recent report by Everytown for Gun Safety found that gun deaths and injuries cost California billions annually, much of which is paid directly by taxpayers every year.

The post Gov. Newsom Signs Historic Tax on Gun Manufacturers appeared first on The San Fernando Valley Sun.

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- **Citation (apa Style)**
  Staff, S. (2023, September 28). Gov. Newsom Signs Historic Tax on Gun Manufacturers. *San Fernando Valley Sun, The (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19454A5BEE3982E8.